Under this provision, the Parliament or the state legislature can impose 'reasonable' restrictions on the Fundamental Rights of public servants in the interests of integrity, honesty, efficiency, discipline, impartiality, secrecy, neutrality, anonymity, devotion to duty and so on. Such restrictions are mentioned in the conduct rules like Central Services (Conduct) Rules, Railway Services (Conduct) Rules and so on.

2. Tenure of Office (Doctrine of Pleasure)

According to Article 310, members of the defence services, the civil services of the Centre and the all-India services or persons holding military posts or civil posts[2] under the Centre, hold office during the pleasure of the President. Similarly, members of the civil services of a state or persons holding civil posts under a state, hold office during the pleasure of the governor of the state.

However, there is an exception to this general rule of dismissal at pleasure. The President or the governor may (in order to secure the services of a person having special qualifications) provide for the payment of compensation to him/her in two cases: (i) if the post is abolished before the expiration of the contractual period, or (ii) if he/she is required to vacate that post for reasons not connected with misconduct on his/her part. Notably, such a contract can be made only with a new entrant, that is, a person who is not already a member of a defence service, a civil service of the Centre, an all-India service or a civil service of a state.

3. Safeguards to Civil Servants

Article 311 places two restrictions on the above 'doctrine of pleasure'. In other words, it provides two safeguards to civil servants against any arbitrary dismissal from their posts:

1. A civil servant cannot be dismissed or removed[3] by an authority subordinate to that by which he/she was appointed.

2. A civil servant cannot be dismissed or removed or reduced in rank except after an inquiry in which he/she has been informed of the charges against him/her and given a reasonable opportunity of being heard in respect of those charges.

The above two safeguards are available only to the members of the civil services of the Centre, the all-India services, the civil services of a state or to persons holding civil posts under the Centre or a state and not to the members of defence services or persons holding military posts.

However, the second safeguard (holding inquiry) is not available in the following three cases:

1. Where a civil servant is dismissed or removed or reduced in rank on the ground of conduct which has led to his/her conviction on a criminal charge; or

2. Where the authority empowered to dismiss or remove a civil servant or to reduce him/her in rank is satisfied that for some reason (to be recorded in writing), it is not reasonably practicable to hold such inquiry; or

3. Where the President or the governor is satisfied that in the interest of the security of the state, it is not expedient to hold such inquiry.

Originally, the opportunity of being heard was given to a civil servant at two stages—at the inquiry stage, and at the punishment stage. But, the 42nd Amendment Act of 1976 abolished the provision for second opportunity (that is, the right of a civil servant to make representation against the punishment proposed